

Mohammad Jafar Ali Khan v. Uttar Pradesh Power Corporation and others

High Court of Judicature at Allahabad · Division Bench · 7 January 2026 · Writ-C No. 44633 of 2025 · **Writ disposed of; petitioner relegated to clause 6.5 objection, demand stayed pending disposal or three months.**

HEADNOTE

A writ questioning an electricity demand of Rs. 10.86 lakh as unexplained was disposed of without examining the bill. The consumer was directed to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 within two weeks; if filed, it is to be decided within two months. The demand is not to be pressed until disposal of the objection or three months, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged a demand notice of Rs. 10,86,038.62 issued by the Junior Engineer/Sub-Division Officer, Electricity Urban Distribution Division-V, Varunapar Imiliyaghat, Varanasi. He contended that the demand was illegal because the circumstances in which it had been issued were not clear. Counsel for Uttar Pradesh Power Corporation submitted that the matter was a bill dispute and that the petitioner could file an objection before the authority concerned, to be disposed of under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection

HOLDING

Where a consumer questions a demand notice as a bill dispute, the writ court will not decide the legality of the demand on merits and will relegate the consumer to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, with a time-bound direction for disposal and an interim stay of the demand until the objection is decided or a specified period expires, whichever is earlier.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE OF RS. 10,86,038.62 WAS ILLEGAL OR ISSUED IN UNEXPLAINED CIRCUMSTANCES.